



NATIONAL FOOTBALL LEAGUE

ARTIFICIAL INTELLIGENCE POLICY

Effective July 18, 2024

I. Introduction

The NFL recognizes the potential of Artificial Intelligence to drive innovation, streamline operations, inform decision making and enhance customer experiences. We also recognize that AI carries with it significant risks and that it is essential that it be used in a responsible and safe manner. The NFL strives to leverage these tools for the benefit of the League and Clubs, business operations, customers, and other stakeholders, while minimizing risks and addressing any concerns that may arise in the use of these technologies.

II. Definitions

“Artificial Intelligence” or “AI” means the capability of a machine to imitate intelligent human behavior by using mathematical models and algorithms to make predictions, identify patterns or perform a specific task. Examples include: chat bots, AI notetakers.

“NFL Content” means any media or other similar content owned or otherwise controlled or licensed by an NFL Entity.

“NFL Data” means all Personal Information (as defined in the NFL Internal Privacy Policy) and all other information that is owned by or proprietary to an NFL Entity, or to which such NFL Entity has rights to use, which may include, but is not limited to:

- Strategic information;
- Business plans;
- Financial data and information, including financial models and operating results;
- New products or services;
- Computer programs;
- Mathematical proofs, derivations, and models;
- Statistical methods and analyses;
- Operational research models;
- Passwords;
- Payroll and compensation data;
- Football-specific information (playbook contents, game and player data and statistics, video, etc.);
- Fan data; and
- Player Health & Safety data.

“NFL Entities” means the National Football League (the “NFL”), the thirty-two (32) NFL member clubs (the “Clubs”), NFL Ventures, Inc., NFL Properties LLC, NFL Enterprises LLC, NFL Productions LLC, NFL International LLC, and each of their respective affiliates.

“NFL Intellectual Property” means intellectual property rights and proprietary rights that are owned by any NFL Entity or to which such NFL Entity has rights to use.

“NFL Personnel” means all full- and part-time League and Club personnel.

III. Scope and Applicability

The NFL Entities and NFL Personnel are permitted to use AI Systems and enter into agreements with third parties regarding the use, advertising, marketing, and/or promotion of AI Systems (an “AI Agreement”); provided that, all such use, relationships and related activities comply with (i) the guidelines set forth in this policy; (ii) federal and state laws and regulations, and (iii) all other applicable NFL policies. This policy applies to each of the NFL Entities and NFL Personnel and the use, advertising, marketing, and/or promotion of (i) AI-enabled technology, including, but not limited to, AI-based models, tools, and other AI-based technologies, whether developed internally or licensed from third parties and (ii) all IT assets, including hardware, software, and applications, that will interact or interface with AI (collectively, “AI Systems”). Non-compliance with this policy may result in disciplinary action, up to and including termination.

To efficiently and effectively implement this policy, the League Office has established an AI Steering Committee, whose membership consists of a broad range of cross-organizational stakeholders including representatives from Business Development, Compliance, Data &

Analytics, Football Operations, Information Security, Information Technology, Privacy, Sponsorship, Consumer Products, Media, and Legal. The AI Steering Committee will conduct regular reviews of this policy, including in connection with relevant NFL Club personnel, to ensure its effectiveness, relevance, and alignment with evolving technologies, best practices, and ethical standards. The AI Steering Committee will provide regular updates to League executive leadership on the program established by this policy. Any updates or changes to the policy will be communicated to NFL Personnel and other stakeholders, and proper training and education will be provided as needed to ensure compliance with the updated policy.

The League Office has also established an AI Council, whose membership consists of representatives nominated by the AI Steering Committee. The AI Council will be responsible for the implementation of this policy, including developing, implementing, and overseeing the approval and review processes described below in connection with uses of AI Systems by any NFL Entity. The AI Council may rely on the opinions and guidance of external subject matter experts in connection with its review process and delegate portions of the review and approval process to other NFL Personnel and escalate to the AI Steering Committee as appropriate. For the avoidance of doubt, to the extent any Club's use of an AI System and/or AI Agreement is approved by the AI Council, such Clubs will remain responsible for monitoring the Club's use of such AI System and ensuring ongoing compliance with this policy.

IV. Policy Principles

- (a) Transparency. The NFL Entities must make their use of AI Systems transparent to all relevant NFL Personnel and provide training and educational programs where appropriate (as described in this policy and to be further developed). Such training and educational programs must teach all NFL Personnel who may interact with a particular AI System how that particular AI System works, including its inputs, outputs, and decision-making processes so that the NFL Personnel will be aware of and be better able to identify and address risks, such as biases (as described in Section II below) or errors that may arise in the use of AI Systems. Broad training for all NFL Personnel on the use of AI will be provided by the AI Council.
- (b) Human Oversight. NFL Personnel must ensure human oversight and accountability over the AI Systems utilized by them. AI Systems must be used as tools to augment human decision-making and not as a replacement for that decision making. NFL Personnel are responsible for validating the outputs of all AI Systems, making critical decisions instead of relying on AI Systems to do so, and being accountable for the actions taken based on all AI-generated insights and outputs.
- (c) Ethical Use and Bias. AI Systems must not cause or perpetuate bias (i.e., delivering results or making decisions that are systematically unfair to certain groups of individuals), discrimination, or harm to individuals or groups based on race, gender, religion, nationality, age, or other characteristics protected by applicable law. AI Systems used by NFL Personnel should be designed and deployed to promote fairness,

accuracy, timeliness, and avoid misrepresentation of information or individuals (e.g., deepfakes).

- (d) Continuous Monitoring. NFL Personnel must establish procedures to routinely monitor and evaluate the use and performance of AI Systems used by them and compliance with this policy, including compliance with any incremental reporting requirements as determined by the AI Council in connection with the review and approval process, where applicable. This includes conducting regular audits, reviewing model structures and processes, inputs and outputs for accuracy and fairness, evaluating how NFL Intellectual Property, NFL Content and NFL Data are being used, and taking corrective actions if biases or errors are identified. NFL Personnel must also keep up to date with the latest research, federal and state laws and regulations, and best practices in AI.
- (e) Legal and Regulatory Compliance. NFL Entities must ensure that all their uses of AI Systems comply with all applicable laws and regulations, including but not limited to, those applicable to data privacy, data security and Copyright protections, as well as any present or future applicable AI laws or regulations.
- (f) Incident Reporting and Remediation. In addition to pre-existing data incident reporting requirements and remediation efforts, NFL Personnel must promptly report to the AI Council (via email at NFLAICouncil@nfl.com) any actual, suspected, or alleged (1) infringement, misappropriation or misuse of NFL Intellectual Property, NFL Content or NFL Data arising from the use of AI Systems; (2) bias, discrimination, or other ethical issues arising from the use of AI Systems; or (3) security or deception issues arising from the use of AI Systems. The AI Council will investigate and coordinate any response to reported incidents with the AI Steering Committee and will determine whether any follow-up is required with any third-party supplier of the relevant AI System.
- (g) Prohibited Uses. In no event may the following information be input into any AI System for any purpose:
 - (i) Passwords, application programming interface (API) keys, or any other information that would allow an otherwise unauthorized actor to gain access to the NFL systems or NFL Data; and
 - (ii) Any other information designated in writing by the employee's management chain.

V. Additional Requirements for NFL Data; NFL Content; NFL Intellectual Property

- (a) Data Privacy and Security. NFL Personnel must ensure that AI Systems, whether developed internally or sourced from a third party, are designed to and have adequate processes in place to protect the security of NFL Data and comply with all applicable data privacy laws and regulations, prior to being used by any NFL Entity. This includes (1) limiting what personal data is used in connection with AI Systems, (2) obtaining proper consent for data collection and usage, (3) storing data securely, and (4) implementing appropriate access controls to prevent unauthorized access or breaches.

- (b) Data Governance. Prior to using any NFL Data in AI Systems, NFL Personnel must ensure that (1) the NFL Entities have sufficient rights to use such NFL Data for the desired purpose, (2) the use of such NFL Data is compliant with all applicable NFL data governance requirements, including appropriate data access controls and (3) NFL Data being used in connection with AI Systems is appropriately tagged in a data catalog for transparency and traceability. If using an AI System to generate new data or to provide data analytics, the following additional requirements apply with respect to such data or analytics:
- (i) Human review and verification must be conducted and should include, among other things, verifying the accuracy and truthfulness of the data or data analytics, and protecting against any bias, discrimination, and ethical issues;
 - (ii) Ensure any necessary licenses to use the output have been obtained; and
 - (iii) Prior to the publication of any AI generated data or analytics on any web site, social media handle, or any other public forum controlled by an NFL Entity or Club, analyze the information to ensure that it does not contain any material not intended to be made public.
- (c) Intellectual Property and Content. NFL Personnel must ensure that (A) use by the applicable NFL Entity and its users of the applicable AI Systems will not infringe, misappropriate, or otherwise violate any intellectual property rights or other third-party rights (including the rights of privacy and publicity), (B) appropriate safeguards are in place with respect to the protection of rights in and to NFL Intellectual Property and NFL Content and (C) all required licenses are in place prior to: (1) using NFL Intellectual Property or NFL Content in connection with AI Systems; (2) licensing third parties the right to use NFL Intellectual Property or NFL Content in connection with AI Systems; (3) using AI Systems that incorporate third-party intellectual property or content; and (4) using AI Systems to generate new works. If using an AI System to generate new or enhanced content, the following requirements apply with respect to such content:
- (i) Determine whether any watermarks or other indications that the content is AI-generated are appropriate;
 - (ii) Determine whether any such content is protectable by copyright, and if not, consider how such content should be used;
 - (iii) Determine any limits on how such content may be used based on the terms of use imposed by the provider of the applicable AI System; and
 - (iv) Prior to the publication of any AI generated content on any web site, social media handle, or any other public forum controlled by an NFL Entity or Club, analyze the information to ensure that it does not contain any material not intended to be made public.

VI. AI Agreements Checklist

All AI Agreements should address, at a minimum, the relevant enumerated points set forth on Annex 1 and seek a corresponding representation, warranty, and/or covenant where possible and appropriate. For more guidance on these terms please contact the NFL Legal Department or AI Council via email at NFLAICouncil@nfl.com.

VII. AI Council Review and Approval Requirements

The following additional mandatory review and approval processes must be complied with in connection with all uses of AI Systems and all related agreements outside of football operations (inclusive of both game day and non-game day (e.g., scouting, game modeling) applications).

Any uses of AI Systems and related agreements in connection with football operations (inclusive of both game day and non-game day (e.g., scouting, game modeling) applications) are expressly excluded from the following review and approval processes but remain subject to all other requirements of this policy as well as the separate current and future policies and procedures of the Football Operations Department, including but not limited to those set forth in the *Policy Manual for Member Clubs – Game Operations* (see *Electronic Devices*) as well as any other applicable current or future NFL policy.

- VII.1 Prior to any new use of any AI System by any NFL Entity or any NFL Entity entering into any new or expanded AI Agreement or other new or expanded relationship involving the use or marketing of a third-party AI System, the NFL Entity must cause its appropriate NFL Personnel to (i) complete and submit an intake questionnaire to the League Office for review and approval (the intake questionnaire will request initial information about the AI System, third party vendor, data being used, etc. and can be accessed via the ServiceNow portal [AI Intake](#)) and (ii) provide the League Office with copies of the proposed agreements for review and approval prior to execution (submissions should be sent via email to NFLAICouncil@nfl.com). All intake questionnaires, proposed agreements and related submissions will be reviewed by the AI Council or their designated representatives and either approved, rejected, or escalated to the AI Steering Committee for review. Additional information may be required by the AI Council in connection with such review.

AI Agreements Checklist

1. **Scope of Use**: The agreement should include a valid license that permits the intended use of the AI System and its outputs by the NFL Entity and its end users (such as its personnel or fans). By way of example, the NFL Entity should consider whether the use is for internal purposes only, the necessity for the AI System or its outputs to be sublicensed or distributed, integrated into proprietary products, and whether there will be restrictions on territory or the ability to alter the product.
2. **AI Standards**: The agreement should include a representation, warranty, and covenant that the third-party service provider and the AI System complies with the principles of ethical and responsible AI, including without limitation, accuracy, fairness, the ability to explain the decision-making process, reliability, robustness, resilience, safety, and security. The agreement should require the AI System provider to provide information in furtherance of transparency and the ability to explain the decision-making process to end users and other stakeholders, and where applicable, customize the interface or user experience accordingly.
3. **Validation and Acceptance Testing**: AI Systems should undergo appropriate and frequent verification and validation to ensure they perform to expected specifications and fulfil their intended outcome. Consider whether such verification and validation should be conducted by an appropriate outside third party (and otherwise should be conducted internally by the Club).
4. **AI Regulatory Compliance**: Third-party providers of AI Systems should commit that they will comply with, and not cause the applicable NFL Entity to be out of compliance with applicable laws, including any present or future applicable AI laws or regulations. In addition, the third-party providers should commit to providing the applicable NFL Entity with all information and assistance necessary to enable it to comply with, or assess or demonstrate its compliance with applicable laws, including any present or future applicable AI laws or regulations.
5. **Ethics and Avoiding Bias**: Obtain representations and warranties from the third-party provider of the AI tool that it has been designed to avoid bias, harm, discrimination, defamation/libel, and otherwise unlawful outputs, and covenants that the provider will avoid the same on an ongoing basis. Consider including a right to regularly test outputs for bias. Also consider including restrictions on harmful, defamatory, or discriminatory outputs.
6. **Intellectual Property (Infringement and Protections)**: Seek a representation, warranty, and covenant that the AI System, its outputs, and any training data utilized by the provider of the AI system have not infringed, misappropriated, or otherwise violated, and do not and

will not infringe, misappropriate, or otherwise violate any third-party rights including those related to intellectual property (including training data) and rights of privacy and publicity.

7. **AI Governance and Control**: If the third party has policies or guidelines as to how it uses or develops AI Systems, they should be reviewed for adequacy and referenced as a requirement in any agreement. Consider what controls and remedies exist if the AI tool is not functioning properly (e.g., service levels or the existence of a “kill switch”).
8. **Proprietary Rights**
 - (a) **Training Data**: If NFL data will be used to train the AI tool, agreements should include clear language stating the NFL’s ownership of such data and putting express restrictions on the AI System’s use of such data. In addition, if training data will include any data that is subject to joint ownership or subject to other use restrictions it is important to secure proper rights prior to using such data with AI Systems.
 - (b) **Input Data**: If the AI System requires a prompt to produce an output, then the agreement should address ownership of the prompt and put restrictions on the AI System’s use of that prompt, including how it is stored and for how long it is retained.
 - (c) **Output Data**: Asserting ownership rights over AI outputs can be challenging. If ownership is necessary, then you should seek confirmation from the third party provider of the AI System that generative AI was not used to generate the output over which ownership is sought.
 - (d) **Model**: If a model is solely trained on NFL data or modified using NFL data, then you should consider asserting ownership of the model or the modified model as opposed to the output, or alternatively include restrictions on any use of the model or modified model by other parties.
9. **Limitations of Liability and Indemnification**: NFL Entities should seek broad indemnity obligations and unlimited liability from the AI System provider for third-party losses arising out of or related to (i) violation of the IP representation/warranty mentioned above; (ii) violation of law by the NFL Entity caused by its use of the AI System; (iii) data breach/incident caused by the action or inaction of the AI System provider or its subprocessor; and (iv) negligence or willful misconduct of the AI System provider.
10. **Data Privacy**: Agreements with AI providers accessing any Personal Information should include a data processing agreement detailing how this data will be used and the processes in place to secure it. Use of AI Systems may require a customized privacy notice or consent for the individual’s data that is being processed. All agreements should comply with the requirements of the League Internal Privacy Policy which include the completion of a Privacy Impact Assessment any time Personal Information is shared with an AI System.

11. **Data Security**: AI vendors should have reasonable technical and administrative security measures in place, including provisions that secure the training data, the models themselves, inputs/outputs and include a provision requiring the vendor to report security incidents in a reasonable timeframe. All agreements should comply with the requirements of the League Information Security Policy and the Information Security Requirements Index.
12. **Insurance**: Agreements should require AI vendors to have appropriate insurance policies to cover the increased risk associated with their product.
13. **Audit**: Agreements should ensure an audit right is secured as to the performance and compliance of any AI System, that such AI System keeps detailed logs, and obligate the third party to regularly complete risk assessments.
14. **Player Data**: Take steps to ensure that any player or game data entered into an AI solution does not raise issues under existing policies or agreements.
15. **Sports Betting**: Any use of AI in the sports betting context must comply with the NFL Gambling Policy.